

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Evelis Otero	Team: Intake	CCRB Case #: 201400681	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 10/19/2013 12:55 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/19/2015	Precinct: 75
Date/Time CV Reported Thu, 01/16/2014 6:26 AM	CV Reported At: Comm. to Combat Police Corruption	How CV Reported: Mail	Date/Time Received at CCRB Wed, 01/22/2014 10:45 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Juan Morales	07010	952033	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Joanna Barletta	15607	951523	013 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Juan Morales	Force: PO Juan Morales used physical force against § 87(2)(b)	A . Unfounded
§ 87(4-b), § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On October 19, 2013, at 12:55 a.m., § 87(2)(b) was in front of § 87(2)(b) in Brooklyn when he was stopped by PO Juan Morales and PO Joanna Barletta because they observed him with a bag of marijuana in his hand. PO Morales frisked, searched and attempted to place § 87(2)(b) under arrest. However, § 87(2)(b) walked away and attempted to enter his residence. PO Morales allegedly punched § 87(2)(b) in the back of the head and handcuffed him (**Allegation A**). § 87(2)(b) was subsequently arrested (complaint encl. B-1 – B-10 and CCRB statement encl. C-2 – C-9).

This complaint was filed 3 months after the incident date. This case was initially assigned to Investigator Andrew Guinan and reassigned to the undersigned § 87(2)(g)

Mediation, Civil and Criminal Histories

This case is not mediation eligible. As of the date of this report, the CCRB has been unable to learn whether § 87(2)(b) has filed a civil lawsuit. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Disposition of Arrest for Incident

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (encl. A-2).
- PO Morales has been a member of the NYPD for 2 years and there are no substantiated CCRB allegations against him (encl. A-1).

Finding and Recommendations

Explanation of Subject Officer Identification

PO Morales acknowledged interacting with § 87(2)(b) § 87(2)(g)

Allegation A – Force: PO Juan Morales used physical force against § 87(2)(b)

§ 87(2)(b) alleged that PO Morales punched him on the back of his head, prior to handcuffing him. PO Morales denied the allegation, which PO Barletta corroborated (encl. D-1 – D-13; D-14 – D-18).

§ 87(2)(b) identified his neighbor, § 87(2)(b) and his family members, § 87(2)(b) and § 87(2)(b) as potential witnesses to this incident. The CCRB was unable to reach § 87(2)(b). The CCRB established contact with § 87(2)(b) aunt, § 87(2)(b) who stated that she and the rest of § 87(2)(b) family members did not witness this incident because they were asleep inside of their residence at the time of the incident.

§ 87(2)(a) PHL § 18(6)

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§ 87(2)(a) PHL § 18(6)

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g)

. As such, it is recommended that **Allegation A** be closed as *unfounded*.

§ 87(4-b), § 87(2)(g)

Team: Strike Team

Investigator:	<u>Evelis Otero</u>	<u>12/19/2014</u>
	Signature	Date

Supervisor:	_____	_____
	Title/Signature	Date

Reviewer:	_____	_____
	Title/Signature	Date

Reviewer:	_____	_____
	Title/Signature	Date

